

An Act

ENROLLED SENATE
BILL NO. 893

By: Howard, Pederson, and
Hamilton of the Senate

and

Caldwell (Chad), Manger,
Lepak, Wolfley, Patzkowsky,
Duel, Kendrix, Dobrinski,
Roberts, and Eaves of the
House

An Act relating to property and critical infrastructure; creating the Military Installation and Critical Infrastructure Protection Act of 2026; providing short title; defining terms; prohibiting foreign principals from foreign adversary countries from owning, having an interest in, or acquiring agricultural land; describing scope of de minimis indirect interest; directing the sale, transfer, or divestiture of agricultural land under certain circumstances; establishing registration requirements; allowing for the acquisition of agricultural land under certain circumstances; deeming contracts, deeds, or other agreements invalid; assigning the Office of the Attorney General with the responsibility of making certain determinations; granting the Attorney General the authority to commence certain actions in district court; providing for the sale of land through judicial foreclosure; providing payment of a reward to whistleblowers; providing for the disbursement of proceeds; providing for the adoption of rules; prohibiting foreign principals from foreign adversary countries from purchasing, holding, renting, or controlling any property near military bases or installations; requiring the sale, transfer, or divestiture of property within certain time period;

deeming contracts, deeds, or other agreements invalid; granting the Attorney General the authority to commence certain actions in district court; providing for the sale of land through judicial foreclosure; providing payment of a reward to whistleblowers; providing for the disbursement of proceeds; assigning the Office of the Attorney General with the responsibility of making certain determinations; establishing guidelines for whistleblowers; providing for referrals to the Office of the Attorney General; establishing rewards for whistleblowers; setting effective date for whistleblower enforcement provision; prohibiting entities and governmental entities from entering into agreements relating to critical infrastructure with foreign principals from foreign adversary countries; authorizing entities and governmental entities to enter into agreements under certain circumstances; prohibiting the use of certain software in state infrastructure; providing for the replacement of prohibited software; providing software removal and notification requirements; directing the Office of the Attorney General to establish reporting process for non-notified transactions; authorizing the Attorney General to submit memorandums or reports to certain committee; directing the Attorney General to retain certain documents and notify the Legislature and Governor; providing for noncodification; providing for codification; and providing an effective date.

SUBJECT: Critical infrastructure

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law not to be codified in the Oklahoma Statutes reads as follows:

This act shall be known and may be cited as the "Military Installation and Critical Infrastructure Protection Act of 2026".

SECTION 2. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 128.1 of Title 60, unless there is created a duplication in numbering, reads as follows:

As used in this act:

1. "Agricultural land" means a land area that is either arable, under permanent crops, or under permanent pastures. Arable land includes land under temporary crops such as cereals, temporary meadows for mowing or pasture, land under market or kitchen gardens, and land temporarily fallow. Land abandoned as a result of shifting cultivation is excluded. Land under permanent crops is cultivated with crops that occupy the land for long periods and need not be replanted after each harvest, such as orchards or vineyards. This category excludes land under trees grown for wood or timber. Permanent pasture land is land used for five (5) or more years for forage, including natural and cultivated crops;

2. "Company" means a for-profit sole proprietorship, organization, association, corporation, partnership, joint venture, limited partnership, limited liability partnership, or limited liability company, including a wholly owned subsidiary, majority-owned subsidiary, parent company, or affiliate of those entities or business associations, that exists to make a profit; or a nonprofit organization;

3. "Critical infrastructure" means systems and assets, whether physical or virtual, so vital to Oklahoma or the United States that the incapacity or destruction of such systems and assets would have a debilitating impact on state or national security, state or national economic security, state or national public health, or any combination of those matters. A critical infrastructure may be publicly or privately owned and includes, but is not limited to:

- a. gas and oil production, storage, or delivery systems,
- b. water supply, refinement, storage, or delivery systems,

- c. telecommunications networks,
- d. electrical power generation, transmission, and delivery systems,
- e. emergency services,
- f. transportation systems and services, or
- g. personal data or otherwise classified information storage systems, including cybersecurity;

4. "Cybersecurity" means the measures taken to protect a computer, computer network, computer system, or other technology infrastructure against unauthorized use or access;

5. "Domicile" means either the country in which a company is registered, where the affairs of the company are primarily completed, or where the majority of ownership share is held;

6. "Foreign adversary" means any country designated by the United States Secretary of State as hostile or a Country of Particular Concern (CPC);

7. "Foreign principal" means:

- a. the government or any official of the government of a foreign adversary,
- b. a political party or member of a political party or any subdivision of a political party of a foreign adversary,
- c. a partnership, association, corporation, organization, or other combination of persons organized under the laws of or having its principal place of business in a foreign adversary, or a subsidiary of such entity, or owned or controlled wholly or in part by any person, entity, or collection of persons or entities of a foreign adversary,

- d. any person who is domiciled in a foreign adversary and is not a citizen or lawful permanent resident of the United States, or
- e. any person, entity, or collection of persons or entities, described in subparagraphs a through d of this paragraph having a controlling interest in a partnership, association, corporation, organization, trust, or any other legal entity or subsidiary formed for the purpose of owning real property;

8. "Military base or installation" means any land, structure, or property owned or controlled by any division of the United States Department of Defense, Oklahoma National Guard, or any other department of government, state or federal, critical to the safety and security of this state or the United States;

9. "Military operating areas" means a military base's or installation's military training routes and the airspace established outside of Class A airspace to separate or segregate certain military flight activities from commercial or private aircraft;

10. "Non-notified transactions" means foreign investments in the United States that are not voluntarily submitted to the Committee on Foreign Investment in the United States for review under 50 U.S.C., Section 4565;

11. "Operational software" means computer programs used for the operation, control, maneuver or maintenance of state infrastructure, or any other computer program applications related to state infrastructure;

12. "Software" means any program or routine, or any set of one or more programs or routines, which are used or intended for use to cause one or more computers or pieces of computer related peripheral equipment, or any combination thereof, to perform a task or set of tasks, as it relates to state infrastructure;

13. "State infrastructure" means critical infrastructure and transportation infrastructure; and

14. "Transportation infrastructure" shall include, but not be limited to:

- a. airports including, but not limited to, commercial and intermodal airports and heliports and all airport infrastructure,
- b. roadways including, but not limited to, publicly accessible streets, roads, highways, and bridges and all roadway infrastructure including, but not limited to, signage, toll booths, weigh stations, and traffic signals,
- c. railways including, but not limited to, all classes of freight rail and passenger rail and all railway infrastructure including, but not limited to, intermodal rail yards and signals,
- d. ports including, but not limited to, inland ports, seaports, deepwater ports, inland waterways, and levees and all port infrastructure including, but not limited to, intermodal stations, and
- e. public transit including bus, ferry, cable car, tram, trolley, and other types of publicly accessible transportation and all public transit infrastructure.

SECTION 3. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 128.2 of Title 60, unless there is created a duplication in numbering, reads as follows:

A. A foreign principal from a foreign adversary country may not directly or indirectly own, have an interest of greater than twenty-five percent (25%) in, or acquire by purchase, grant, devise, or descent agricultural land or any interest, except a de minimis indirect interest, in such land in this state. A foreign principal has a de minimis indirect interest if any ownership is the result of the foreign principal's ownership of registered equities in a publicly traded company owning the land and if the ownership of the foreign principal in the country is either:

1. Less than five percent (5%) of any class of registered equities or less than five percent (5%) in the aggregate in multiple classes of registered equities; or

2. A noncontrolling interest in an entity controlled by a company that is both registered with the United States Securities and Exchange Commission as an investment advisor under the Investment Advisers Act of 1940, as amended, and is not a foreign entity.

B. A foreign principal that directly or indirectly owns or otherwise controls agricultural land, as defined in Section 1 of this act, in this state shall sell, transfer, or otherwise divest itself of the agricultural land within one hundred eighty (180) days of the effective date of this act.

C. A foreign principal that directly or indirectly owns or acquires agricultural land or any interest in such land in this state shall register with the Oklahoma Department of Agriculture, Food, and Forestry within sixty (60) days of the effective date of this act or the date of acquisition, whichever is latest. The Department shall establish a form for such registration which, at minimum, shall include all of the following:

1. The name of the owner of the agricultural land or the owner of the interest in such land;

2. The address of the agricultural land, the parcel identification number of the property appraiser, and the legal description of the property; and

3. The number of acres of the agricultural land.

D. Notwithstanding the provisions of subsections A and B of this section, a foreign principal from a foreign adversary country may acquire or continue to hold agricultural land on or after the effective date of this act if the foreign principal has a national security agreement with the Committee on Foreign Investment in the United States (CFIUS) as of the effective date of this act or at the time of acquisition and continues to maintain such national security agreement.

E. Any current deeds, contracts, rental agreements, or other legal agreements in conflict with the provisions of this act shall be deemed invalid from the date of adoption unless otherwise provided.

F. The responsibility for determining whether an entity is subject to the provisions of this section rests solely with the foreign entity, the Attorney General, any qualifying whistleblower, and no other individual or entity. An individual or entity who is not a foreign entity shall not be required to determine or inquire whether another person or entity is or may be subject to this section and shall bear no civil or criminal liability under the provisions of this section.

G. If a foreign principal from a foreign adversary country does not divest the real property as required by this section, the Attorney General shall commence an action in district court within the jurisdiction of the real property.

H. If the real property is held in violation of the provisions of this section, the district court shall order that the real property be sold through judicial foreclosure.

I. If a whistleblower referral results in a divestiture of land or other assets held in violation of the provisions of this section, the whistleblower shall be entitled to a reward equal to twenty percent (20%) of the proceeds of the land sale that results from the violation of this section after payments to lienholders. Proceeds of the sale shall be disbursed in the following order, as applicable:

1. The payment of authorized costs of the sale, including all approved fees and expenses of the referee and any taxes and assessments due;

2. The payment, in an amount approved by the court, to the Office of the Attorney General for reimbursement of investigation and litigation costs and expenses;

3. To bona fide lienholders, in their order of priority, except for liens which under the terms of the sale are to remain on the property;

4. To whistleblowers; and

5. To the restricted foreign entity.

J. The Oklahoma Department of Agriculture, Food, and Forestry shall adopt rules to implement the provisions of this section.

SECTION 4. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 128.3 of Title 60, unless there is created a duplication in numbering, reads as follows:

A. A foreign principal from a foreign adversary country shall not be allowed to directly or indirectly purchase, hold, rent, or otherwise control any real property within ten (10) miles of a military base or installation, a military operating area, or other critical infrastructure.

B. A foreign principal that directly or indirectly controls any real property covered by the provisions of subsection A of this section, excluding temporary contractual agreements such as rental or lease agreements, shall sell, transfer, or otherwise divest itself of the property within one hundred eighty (180) days of the effective date of this act.

C. Any current deeds, contracts, rental agreements, or other legal agreements in conflict with this law shall be deemed invalid from the date of adoption unless otherwise provided.

D. If a foreign principal from a foreign adversary country does not divest the real property as required by the provisions of this section, the Attorney General shall commence an action in the district court within the jurisdiction of the real property.

E. If the real property is held in violation of the provisions of this section, the district court shall order that the real property be sold through judicial foreclosure pursuant to Section 125 of Title 60 of the Oklahoma Statutes.

F. If a whistleblower referral results in a divestiture of land or other assets held in violation of the provisions of this section, the whistleblower shall be entitled to a reward equal to twenty

percent (20%) of the proceeds of the land sale that results from the violation of the provisions of this section after payments to lienholders. Proceeds of the sale shall be disbursed in the following order, as applicable:

1. The payment of authorized costs of the sale, including all approved fees and expenses of the referee and any taxes and assessments due;

2. The payment, in an amount approved by the district court, to the Attorney General for reimbursement of investigation and litigation costs and expenses;

3. To bona fide lienholders, in their order of priority, except for liens which under the terms of the sale are to remain on the property;

4. To whistleblowers; and

5. To the restricted foreign entity.

G. The responsibility for determining whether an entity is subject to this section rests solely with the foreign entity, the Attorney General, any qualifying whistleblower, and no other individual or entity. An individual or entity who is not a foreign entity shall not be required to determine or inquire whether another person or entity is or may be subject to the provisions of this section, and shall bear no civil or criminal liability under the provisions of this section.

SECTION 5. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 128.4 of Title 60, unless there is created a duplication in numbering, reads as follows:

A. Any individual may act as a whistleblower and provide a referral to the Office of the Attorney General for violations of the provisions of Section 3 and Section 4 of this act.

B. If a whistleblower referral results in a divestiture of land or other assets held in violation of the provisions of this act, the whistleblower shall be entitled to a reward equal to twenty percent

(20%) of the proceeds of the land sale that results from violation of this act.

C. The whistleblower enforcement provision shall take effect one hundred eighty (180) days after the effective date of this act.

SECTION 6. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 13001 of Title 74, unless there is created a duplication in numbering, reads as follows:

A. An entity constructing, repairing, operating, or otherwise having significant access to critical infrastructure shall prohibit any foreign principal from having access to critical infrastructure in this state.

B. A governmental entity may not enter into a contract or other agreement relating to critical infrastructure in this state with a company that is a foreign principal from a foreign adversary country, or use products or services produced by a foreign principal from a foreign adversary country.

C. Notwithstanding the provisions of subsection A and B of this section, an entity or governmental entity may enter into a contract or agreement relating to critical infrastructure with a foreign principal from a foreign adversary country or use products or services produced by a foreign principal from a foreign adversary country if:

1. There is no other reasonable option for addressing the need relevant to state critical infrastructure;

2. The contract is preapproved by the Office of the Attorney General; and

3. Not entering into such a contract or agreement would pose a greater threat to the state than the threat associated with entering into the contract.

SECTION 7. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 13002 of Title 74, unless there is created a duplication in numbering, reads as follows:

A. All software used in state infrastructure located within or serving Oklahoma shall not include any software designed, developed, manufactured, or supplied by a federally banned corporation, nor any software banned at the federal level. All software used in state infrastructure located within or serving Oklahoma shall not include any software designed, developed, manufactured, or supplied by a foreign adversary, a state-owned enterprise of a foreign adversary, or any federally banned corporation or software.

B. All software used in state infrastructure in operation within or serving Oklahoma, to include any state infrastructure which is not permanently disabled, shall have all software prohibited by subsection A of this section removed and replaced with software which is not prohibited by subsection A of this section.

C. Any state infrastructure provider that removes, discontinues, or replaces any prohibited software shall not be required to obtain any additional permits from any state agency or political subdivision for the removal, discontinuance, or replacement of such software as long as the state agency or political subdivision is properly notified of the necessary replacements and the replacement software is similar to the existing software.

SECTION 8. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 13003 of Title 74, unless there is created a duplication in numbering, reads as follows:

A. The Office of the Attorney General shall establish a process by which local officials, states officials, or other persons may submit information or concerns to the Office regarding non-notified transactions in Oklahoma. The Office of the Attorney General may adopt any necessary rules to implement the provisions of this subsection.

B. The Office of the Attorney General may submit a memorandum or report concerning non-notified transactions the Attorney General has identified in Oklahoma to the Committee on Foreign Investment in the United States.

C. The Office of the Attorney General shall:

1. Retain a copy of any documents submitted to the Committee on Foreign Investment in the United States that are included with a memorandum or report submitted under the provisions of subsection B of this section; and

2. Notify the Legislature and the Governor as soon as practicable after submitting a memorandum, report, or other information pursuant to the provisions of subsection B of this section.

SECTION 9. This act shall become effective July 1, 2027.

Passed the Senate the 14th day of May, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 14th day of May, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____